



SPONSOR: Sen. Mantzavinos & Rep. Bush
Sens. Sokola, Walsh

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 137

AN ACT TO AMEND TITLE 5 OF THE DELAWARE CODE RELATING TO EARNED WAGE ACCESS SERVICES PROVIDERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Three-fifths of all members elected to each house thereof concurring therein):

Section 1. Amend Part IV of Title 5 of the Delaware Code by adding a new Chapter 26 and by making deletions as shown by strike through and insertions as shown by underline as follows:

CHAPTER 26. Earned Wage Access Services Providers

§ 2601. Definitions.

In this chapter, unless the context otherwise requires:

(1) "Commissioner" means the State Bank Commissioner.

(2) "Consumer" means a natural person residing in the state of Delaware. A provider may use the mailing address or state of residence provided by a consumer or consumer's employer to determine the consumer's state of residence for purposes of this chapter.

(3) "Consumer-directed wage access services" means the business of delivering to consumers access to earned but unpaid income, based on the consumer's representation and the provider's reasonable determination of the consumer's earned but unpaid income, which may include but is not limited to time and attendance data, geolocation data, access to employer systems, payroll systems, or paycheck history.

(4) "Earned but unpaid income" means salary, wages, compensation, or other income that a consumer or an employer represents, and a provider reasonably determines, has been earned or has accrued to the benefit of that consumer in exchange for the consumer's provision of services to an employer or on an employer's behalf, including on an hourly, project-based, piecework, or other basis and including where the consumer is acting as an independent contractor with respect to the employer, which has not, at the time of the payment of proceeds, been paid to the consumer by the employer.

(5) "Earned wage access service provider" or "provider" means a person that is engaged in the business of offering and providing earned wage access services to consumers. "Provider" does not include any of the following:

a. A service provider, such as a payroll service provider, whose role may include verifying the available

earnings but who is not contractually obligated to fund proceeds delivered as part of an earned wage access service.

b. An employer that offers a portion of salary, wages, or compensation directly to its employees or independent contractors prior to the normally scheduled pay date.

c. An entity that offers or provides earned wage access services and reports a consumer's payment or nonpayment of either outstanding proceeds of the earned wage access services or fees, voluntary tips, gratuities, or other donations solely attributable to the earned wage access services to a consumer reporting agency, as defined in Section 603(p) of the federal Fair Credit Reporting Act (15 U.S.C. Sec. 1681a(p)).

(6) "Earned wage access services" means providing consumer-directed wage access services, employer-integrated wage access services, or both.

(7) "Employer" means a person who employs a consumer, or any other person who is contractually obligated to pay a consumer earned but unpaid income in exchange for the consumer's provision of services to the employer or on the employer's behalf, including on an hourly, project-based, piecework, or other basis, and including where the consumer is acting as an independent contractor with respect to the employer. The term does not include a customer of the employer or a person whose obligation to pay salary, wages, compensation, or other income to a consumer is not based on the consumer's provision of services for or on behalf of that person.

(8) "Employer-integrated wage access services" means the business of delivering to consumers access to earned but unpaid income that is based on employment, income and attendance data obtained directly or indirectly from an employer or an employer's payroll service provider.

(9) "Fee" means any of the following:

a. A fee charged by a provider for delivery or expedited delivery of proceeds to a consumer.

b. A subscription or membership fee charged by a provider for a bona fide group of services that includes earned wage access services.

c. An amount paid by an employer to a provider on a consumer's behalf, which entitles the consumer to receive proceeds at reduced or no cost to the consumer.

The term does not include a voluntary tip, gratuity, or donation paid by a consumer to a provider.

(10) "Licensee," or "person licensed" means any person duly licensed or regulated by the Commissioner pursuant to this chapter and, in addition, means any person or class of persons exempt from any or all of the provisions of

this chapter in accordance with § 2602(b) of this title, to the extent and for such purposes as determined by the Commissioner in order to effectuate the purposes of this chapter.

(11) "Outstanding proceeds" means a payment of proceeds to a consumer by a provider that has not yet been repaid to that provider.

(12) "Person" means a corporation, partnership or any other business entity or group or combination of individuals however organized.

(13) "Proceeds" mean a payment of funds to a consumer by a provider that is based on earned but unpaid income § 2602. License required.

(a) Every person desiring to transact the business of earned wage access services in this State shall be required to obtain a license under this chapter. This chapter shall not apply to any banking organization or credit union.

(b) The Commissioner shall be authorized to exempt from any or all of the provisions of this chapter such persons or classes of persons, as the Commissioner shall find inappropriate to include within the coverage of this chapter in order to effectuate the purposes of this chapter. The Commissioner may by regulation establish procedures for application, fees and other requirements for an exemption pursuant to this subsection.

§ 2603. Application and fees.

(a) Every application for a license shall be in writing in the form prescribed by the Commissioner and shall contain the name and complete address or addresses where the business of the applicant is to be conducted or a statement that the business of the applicant is to be conducted entirely online and shall also contain the names and complete addresses of each member, director and principal officer of the applicant. Such application shall also include a description of the activities of the applicant, in such detail and for such periods as the Commissioner must require, as well as such further information as the Commissioner may require. The Commissioner, at the time the application is submitted or in connection with an investigation of the application, must require the applicant, a principal of, individual who is a person in control of, or proposed responsible individual of the applicant, or any other individual associated with the applicant and the proposed licensed activities, to provide the Commissioner or the Commissioner's designee with a complete set of fingerprints for purposes of a state and national criminal background investigation. Such applicant, at the time of making such application, shall pay to the Commissioner as an investigation fee the sum of \$250 which shall not be refundable.

(b) Upon approval, the applicant shall pay an annual license fee of \$1,500 which shall be payable annually thereafter. No abatement in the amount of said license fee shall be made if the license is issued for less than 1 year or if the license is surrendered, canceled or revoked prior to the expiration of the period for which such license was issued. Every license shall expire on December 31 of each year.

82 § 2604. Issuance of license.

83 Upon the filing of an application for a license, if the Commissioner shall find that the financial responsibility,
84 experience, character and general fitness of the applicant and of the members thereof, if the applicant be a copartnership or
85 association, and of the officers and directors thereof, if the applicant be a corporation, are such as to command the
86 confidence of the community and to warrant belief that the business will be operated honestly, fairly, and efficiently within
87 the purpose of this chapter, the Commissioner shall thereupon issue a license to transact business in accordance with this
88 chapter. If the Commissioner shall not so find, the Commissioner shall not issue such license and the Commissioner shall
89 notify the applicant of the denial, give notice of the grounds for refusal and notify the applicant of the right to request a
90 hearing. If the applicant requests a hearing the Commissioner shall hold such hearing under Chapter 101 of Title 29. The
91 Commissioner shall approve or deny every application for license hereunder within 90 days from the date the
92 Commissioner determines that the application as filed with the Commissioner is complete.

93 § 2605. Changes in officers or directors of licensee.

94 In the event that there shall be any change among the officers, partners or directors of any licensee, the licensee
95 shall forthwith notify the Commissioner of the name, address and occupation of each new officer, partner, or director and
96 provide such other information as the Commissioner may require.

97 § 2606. License requirements; acquisition.

98 (a) A licensee shall obtain a license for its online activities and, if applicable, for each office or other place of
99 business from which its licensed business is conducted, upon payment of the required fees for each office and compliance
100 with all applicable provisions of law. In the event the location of a licensed office is changed during the term of the license,
101 the Commissioner shall issue without charge an amended license for the new location. In case there is a change of name but
102 no change in corporate structure, the Commissioner shall issue without charge an amended license for the new name. Such
103 license shall not be otherwise transferable or assignable. The Commissioner may issue more than 1 license to the same
104 applicant upon payment of the required fees and compliance with all applicable provisions of law.

105 (b) Upon written request, the Commissioner may in the Commissioner's discretion grant conditional approval for
106 the acquired licensee to conduct its business under its existing license for a period not to exceed 60 days in cases where the
107 control of the licensee changes and where a new application for licensure has been filed in accordance with § 2603 of this
108 title.

109 § 2607. Renewal of license.

110 Every holder of a license or a renewal thereof, as provided for in this section, desiring to continue the transaction

of the business as provided for in this chapter, shall at least 30 days prior to the expiration of such license or renewal thereof make application to the Commissioner on forms to be provided by the Commissioner for a license renewal. The Commissioner may mandate that applications for renewal shall be treated as new applications if said renewal applications are not on file with the office of the State Bank Commissioner at least 30 days prior to the expiration of such license or renewal thereof. Licensees who have not complied with supervisory letters or who have not paid the supervisory assessment or examination fees may be refused license renewal.

§ 2608. Surety bonds and irrevocable letters of credit.

(a) Surety bonds. — (1) Every licensee shall file with the Commissioner, in a form satisfactory to the Commissioner, an original corporate surety bond, with surety provided by a corporation authorized to transact business in this State, in the principal sum to be determined by the Commissioner, except that the bond amount shall not be more than \$35,000. In determining the amount of the bond required for a licensee, the Commissioner shall consider, among other things:

a. The dollar value of the provider's Delaware business.

b. Such other and further criteria as the Commissioner may deem necessary and appropriate.

(2) No bond shall be accepted unless the following requirements are satisfied:

a. The aggregate value of the bond shall be equal to or greater than the amount determined in accordance with subsection (a)(1) of this section.

b. The term of the bond shall be commensurate with the license period or continuous.

c. The expiration date of the bond shall not be earlier than midnight of the date on which the license expires.

d. The bond shall run to the State for the benefit of the office of the State Bank Commissioner and for the benefit of all consumers injured by any wrongful act, omission, default, fraud or misrepresentation by a licensee in the course of its activity as a licensee. Compensation under the bond shall be for amounts which represent actual losses and shall not be payable for claims made by business creditors, third-party service providers, agents or persons otherwise in the employ of the licensee. Surety claims shall be paid to the office of the State Bank Commissioner by the insurer not later than 90 days after receipt of a claim. Claims paid after 90 days shall be subject to daily interest at the legal rate. The aggregate liability of the surety on the bond, exclusive of any interest which accrues for payments made after 90 days, shall in no event exceed the amount of such bond.

(3) If the licensee changes its surety company or the bond is otherwise amended, the licensee shall immediately provide the Commissioner with the amended original copy of the surety bond. No cancellation of an existing bond

by a surety shall be effective unless written notice of its intention to cancel is filed with the Commissioner at least 30 days before the date upon which cancellation shall take effect.

(4) The Commissioner may require potential claimants to provide such documentation and affirmations as the Commissioner may determine to be necessary and appropriate. In the event the Commissioner determines that multiple consumers have been injured by a licensee, the Commissioner shall cause a notice to be published for the purpose of identifying all relevant claims.

(5) When a surety company receives a claim against the bond of a licensee, it shall immediately notify the Commissioner and shall not pay any claim unless and until it receives notice to do so from the Commissioner.

(6) The Commissioner shall have a period of 2 calendar years after the effective date of cancellation or termination of the surety bond by the insurer to submit claims to the insurer.

(b) Irrevocable letters of credit. — In lieu of requiring the filing of a surety bond, the Commissioner may, at the Commissioner's discretion, accept from a licensee an irrevocable letter of credit.

(1) Such irrevocable letters of credit shall be provided by an insured depository institution (as defined in the Federal Deposit Insurance Act at 12 U.S.C. § 1813(c)) acceptable to the Commissioner, in a form satisfactory to the Commissioner in the principal sum to be determined by the Commissioner, except that the irrevocable letter of credit amount shall not be more than \$35,000. In determining the amount of the irrevocable letter of credit required for a licensee, the Commissioner shall consider, among other things:

a. The dollar value of the provider's Delaware business.

b. Such other and further criteria as the Commissioner may deem necessary and appropriate.

(2) No irrevocable letter of credit shall be accepted unless the following requirements are satisfied:

a. The aggregate value of the irrevocable letter of credit shall be equal to or greater than the amount determined by subsection (b)(1) of this section.

b. The irrevocable letter of credit shall run to the State for the benefit of the office of the State Bank Commissioner and for the benefit of all consumers injured by the wrongful act, omission, default, fraud or misrepresentation by a licensee in the course of its activity as a licensee. Compensation under the irrevocable letter of credit shall be for amounts which represent actual losses and shall not be payable for claims made by business creditors, third-party service providers, agents or persons otherwise in the employ of the licensee. The aggregate liability of the insured depository institution issuing the irrevocable letter of credit shall in no event exceed the amount of such irrevocable letter of credit.

c. Draws upon such irrevocable letters of credit shall be available by sight drafts thereunder, in amounts determined by the Commissioner, up to the aggregate amount of the irrevocable letter of credit. Such drafts shall be honored in accordance with § 5-112(1) of Title 6.

(3) The Commissioner may require potential claimants to provide such documentation and affirmations as the Commissioner may determine to be necessary and appropriate. In the event the Commissioner determines that multiple consumers have been injured by a licensee, the Commissioner shall cause a notice to be published for the purpose of identifying all relevant claims.

(4) The Commissioner may refuse release of an irrevocable letter of credit, following the surrender of a license, up to 2 years after the effective date of such termination of licensure.
§ 2609. Operating requirements.

(a) A licensee and any person required to be licensed under this chapter shall comply with all of the following requirements:

(1) Develop and implement policies and procedures to respond to inquiries from consumers and address complaints from consumers.

(b) Before entering into an agreement with a consumer for the provision of earned wage access services, do both of the following:

(1) Inform the consumer of the consumer's rights under the agreement.

(2) Fully and clearly disclose to the consumer all provider-imposed fees or a schedule of fees associated with the provision of earned wage access services.

(c) Inform the consumer of the fact of any material changes to the terms and conditions of the earned wage access services agreement before implementing those changes for that consumer.

(d) Allow the consumer to cancel use of the provider's earned wage access services at any time, without incurring a fee for that cancellation.

(e) Whenever it offers a consumer the option to receive proceeds for a fee, or solicits a tip, gratuity, or donation provide the consumer at least 1 reasonable option to obtain the same amount of proceeds at no cost and clearly explain how the consumer may select the no-cost option.

(f) Comply with all applicable local, state, and federal privacy and information security laws.

(g) Provide proceeds to a consumer via any means mutually agreed upon by the consumer and the provider.

(h) In any case in which a provider will seek repayment of outstanding proceeds, fees, voluntary tips, gratuities, or other donations from a consumer's account at a depository institution, including via electronic transfer:

(1) Comply with applicable provisions of the federal Electronic Fund Transfer Act (15 U.S.C, 1693 et seq.) and its implementing regulations.

(2) Reimburse the consumer for the full amount of any overdraft or non-sufficient funds fees imposed on that consumer by the consumer's depository institution, which are caused by the provider attempting to seek payment of any outstanding proceeds, fees, voluntary tips, gratuities, or other donations on a date before, or in an incorrect amount from, the date or amount disclosed to the consumer. However, this requirement shall not apply with respect to payments of outstanding proceeds, fees, tips, gratuities, or other donations incurred by a consumer through fraudulent means.

(i) In any case in which a provider solicits or receives a tip, gratuity, or donation from a consumer, the provider must do all of the following:

(1) Clearly and conspicuously disclose to the consumer immediately prior to each transaction that a tip, gratuity, or donation amount may be zero and is voluntary.

(2) Clearly and conspicuously disclose in its agreement with the consumer that tips, gratuities, or donations are voluntary and that the offering of earned wage access services, including the amount of proceeds a consumer is eligible to request and the frequency with which proceeds are provided to a consumer, is not contingent on whether the consumer pays any tip, gratuity, or donation or on the size of any tip, gratuity, or donation.

(3) Refrain from misleading or deceiving consumers about the voluntary nature of such tips, gratuities, or donations.

(4) Refrain from making representations that tips or gratuities will benefit any specific, individual person.

§ 2610. Prohibitions.

(a) A licensee and any person required to be licensed under this chapter may not do any of the following:

(1) Compel or attempt to compel repayment by a consumer of outstanding proceeds, fees, voluntary tips, gratuities, or other donations through any of the following means:

a. A suit against the consumer in a court of competent jurisdiction.

b. Use of outbound telephone calls to attempt collection from the consumer.

c. Use of a third party debt collector to pursue collection from the consumer on the provider's behalf.

d. Sale of outstanding amounts to a third-party debt collector or debt buyer for collection from the consumer.

230 However, the requirements of paragraphs a. through d. of this subsection shall not apply to repayment of
231 outstanding proceeds, fees, voluntary tips, gratuities, or donations incurred by a consumer through
232 fraudulent or other unlawful means or preclude a provider from pursuing an employer for breach of its
233 contractual obligations to the provider.

234 (b) Share with an employer any fees, voluntary tips, gratuities, or other donations that were received from or
235 charged to a consumer for earned wage access services. Any payment from the employer to the earned wage access
236 services provider set forth in an agreement between the employer and earned wage access services provider shall not be
237 considered a violation of this provision.

238 (c) Require a credit score issued by a consumer credit reporting agency to determine a consumer's eligibility
239 for earned wage access services.

240 (d) Accept repayment of proceeds or payment of fees, tips, gratuities, or other donations via any form of
241 credit, including a credit card or charge card.

242 (e) Impose a late fee, deferral fee, interest, or any other penalty or fee on a consumer for failure to repay
243 outstanding proceeds, fees, voluntary tips, gratuities, or other donations.

244 § 2611. Suspension, revocation or surrender of license.

245 (a) The Commissioner may revoke any license issued hereunder if the Commissioner shall find that:

246 (1) The licensee has violated any provision of this chapter or any rule or regulation made by the
247 Commissioner under and within the authority of this chapter or of any other law, rule or regulation of this State or
248 the United States.

249 (2) Any fact or condition exists which, if it had existed at the time of the original application for such
250 license, would have warranted the Commissioner in refusing originally to issue such license.

251 (3) The licensee has engaged in business activities or practices in connection with its earned wage access
252 services, which could be deemed unfair or deceptive by nature of intent. Such activities and practices include, but
253 are not limited to, the use of tactics which mislead the consumer, misrepresent the consumer transaction or any
254 part thereof or otherwise create false expectations on the part of the consumer.

255 (b) The Commissioner may temporarily suspend any license pending the issuance of a final order as provided in
256 Chapter 101 of Title 29.

257 (c) Except as provided in subsection (b) of this section, no license shall be revoked or suspended except after
258 notice and an opportunity for the licensee to request a hearing in accordance with Chapter 101 of Title 29.

259 (d) Any licensee may surrender any license by delivering to the Commissioner such license together with written

notice that it thereby surrenders such license, but such surrender shall not affect such licensee's civil or criminal liability for acts committed prior to such surrender.

(e) No revocation, suspension or surrender of any license shall impair or affect the obligation of any preexisting lawful contract between the licensee and any person.

(f) Every license issued hereunder shall remain in force and effect until the same shall have expired or shall have been surrendered, revoked or suspended in accordance with this chapter, but the Commissioner shall have authority to reinstate a suspended license or to issue a new license to a licensee whose license shall have been revoked if no fact or condition then exists which would have warranted the Commissioner in refusing originally to issue such license under this chapter.

(g) Whenever the Commissioner shall revoke or suspend a license issued pursuant to this chapter, the Commissioner shall forthwith execute a written order to that effect. The Commissioner shall forthwith serve the written order upon the licensee. Any such order may be reviewed in the manner provided by Chapter 101 of Title 29.

§ 2612. Supervision and examination of business by Commissioner.

(a) Every person or combination of persons licensed to transact business as provided in this chapter in the State shall be subject to the supervision and examination of the State Bank Commissioner and shall be examined by the Commissioner or the Commissioner's authorized representative when the Commissioner deems necessary.

(b) On the occasion of every examination, the Commissioner or the Commissioner's authorized representative shall be given access to every part of the office or place of business visited and to the assets, securities, books and papers of the business.

(c) The examination made by the Commissioner or the Commissioner's authorized representative shall be a thorough examination into the affairs of the business visited, the resources and liabilities, the investment of the funds, the mode of conducting the business and the compliance or noncompliance with this Code or any regulations promulgated thereunder, and any other statutes or regulations of this State or the United States; and in connection with such examination the Commissioner or the Commissioner's authorized representative may examine, under oath or affirmation, any and all persons connected with or associated with the licensee.

(d) If, in the Commissioner's opinion, it is necessary for a thorough examination of a licensee, the Commissioner may retain 1 or more accountants, attorneys, appraisers or other third parties to assist the Commissioner in such examination. Within 10 days after receipt of a statement from the Commissioner, such licensee shall pay or reimburse the fees, costs and expenses of any third parties retained by the Commissioner under this subsection.

(e) The Commissioner may prescribe regulations to carry out the purposes of this chapter.

290 § 2613. Maintenance of books and records by licensee.

291 Every licensee shall maintain such books, accounts and records relating to all transactions within this chapter as
292 will enable the Commissioner to enforce full compliance with this chapter.

293 § 2614. Retention of books and records by licensee.

294 All books, accounts and records of the licensee shall be preserved and kept available as provided in this chapter for
295 such period of time as the Commissioner may by regulation require.

296 § 2615. Contents of books and records.

297 The Commissioner may prescribe the minimum information to be shown in such books, accounts and records of
298 the licensee so that such records will enable the Commissioner to determine compliance with this chapter.

299 § 2616. Multi-state automated licensing system.

300 (a) The Commissioner is authorized to participate in any automated system involving 1 or more other states that
301 will facilitate any aspect of the application and licensing processes of this chapter.

302 (b) Upon joining any such system, the Commissioner may by regulation establish:

303 (1) Any additional requirements for a license under this chapter that the Commissioner determines are
304 necessary for participation in the system.

305 (2) Prelicensing education and testing, and postlicensing continuing education of individuals employed by
306 the applicants or licensees subject to the system.

307 (3) Any additional investigation fees, any fees paid directly to the administrator of the system, or any
308 other fee required by the system to process an application or maintain a license, in such amount as the
309 Commissioner determines is necessary to participate in the system.

310 (c) The administrator of any such system in which the Commissioner participates is authorized to act on behalf of
311 the Commissioner to collect from the applicants and licensees subject to the system any payments due the Commissioner
312 under this chapter, to collect information and maintain records in electronic or other format relating to those applicants and
313 licensees, and to submit fingerprints and any other information required for a criminal history background check to the
314 Federal Bureau of Investigation or other law-enforcement agency.

315 (d) Information maintained on any such system in which the Commissioner participates regarding the applicants
316 and licensees subject to the system may be shared with any other state participating in that system for the purpose of
317 licensing, regulating, or supervising that same applicant or licensee under a statute similar to this chapter, if that state could
318 have obtained that same information directly from the applicant or licensee under its own law. The Commissioner shall

319 ensure that the system maintains appropriate confidentiality, privacy, data security, and security breach notification policies
320 that are in full compliance with Delaware law.

321 § 2617. Applicability of other state financial services laws.

322 (a) Notwithstanding any other provision of state law to the contrary, any earned wage access services offered or
323 provided by a licensee in accordance with this chapter shall not be considered:

324 (1) A violation of or noncompliance with any law relating to the payment of minimum or overtime wage
325 or governing the sale or assignment of, or an order for, earned but unpaid income.

326 (2) A loan or other form of credit or debt, and the licensee shall not be considered a creditor, debt
327 collector, or lender.

328 (3) Money transmission, and the provider shall not be considered a money transmitter.

329 (b) Notwithstanding any other state law, fees, tips, gratuities, or donations paid to a licensee in accordance with
330 this chapter shall not be considered interest or finance charges. If there is a conflict between the provisions of this chapter
331 and any other state law, the provisions of this chapter control.

SYNOPSIS

Earned Wage Access (EWA) is a Fintech product that allows workers to voluntarily access the money they have already earned during a pay-period for work they have already completed, ahead of their scheduled payday. Users primarily access EWA services through a mobile app and are only able to withdraw wages their EWA provider has verified that they have already earned. This verification process, coupled with the fact that EWA transactions are non-recourse and credit-invisible make the product distinct from loans and credit cards.

As an innovative financial product with distinct characteristics that do not fit within existing regulations, EWA requires a distinct regulatory framework. Currently, more than 100,000 workers in Delaware have already used Earned Wage Access services, which are mostly unregulated in the state. This bill helps ensure that responsible EWA providers can operate under the supervision of Delaware's banking regulator and continue to serve users in the state of Delaware. Moreover, this bill codifies a regulatory framework that recognizes the distinct characteristics of EWA products and will keep Delawareans protected from bad actors who might seek to use the "Earned Wage Access" moniker, while instead offering a predatory product.

Specifically, this bill protects consumers in Delaware by creating a new Earned Wage Access provider license, issued by the Office of the State Bank Commissioner to companies whose products meet the following criteria, ensuring that:

- All users have at least one reasonable no-cost option for each transaction
- All fees and gratuities are clearly and transparently represented to users before they confirm their transactions
- EWA transactions are credit-invisible, that providers do not check a user's credit before issuing EWA services, nor do they report to a credit agency if a user cancels their service
- EWA providers do not pursue recourse against users including charging interest, late fees, or sending unresolved EWA transactions to collections

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